

MTUS Analysis Document

MTUS Constitutional Analysis Project
Personal Research Initiative
February 2026

CERVICAL AND THORACIC SPINE GUIDELINE - STATISTICAL ANALYSIS

SOURCE DOCUMENT: ACOEM Cervical and Thoracic Spine Disorders Guideline

EFFECTIVE DATE: October 17, 2018

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FULL TEXT AVAILABLE AT: <https://www.acoem.org/guidelines-resources/library/>

OFFICIAL MTUS ADOPTION: California Code of Regulations, Title 8, Section 9792.20

MTUS REGULATIONS: https://www.dir.ca.gov/dwc/MTUS/MTUS_Regulations.htm

STATISTICAL SUMMARY

TOTAL RECOMMENDATIONS ANALYZED: 162

RECOMMENDATION BREAKDOWN:

Category	Count	Percentage
Strongly Recommended	13	8.0%
Recommended	18	11.1%
Not Recommended	7	4.3%
Insufficient Evidence	124	76.5%

KEY FINDING: 76.5% of all recommendations are "Insufficient Evidence"

FDA-APPROVED TREATMENTS DENIED

The following FDA-approved treatments receive "Insufficient Evidence" ratings:

Medications:

- Pregabalin (Lyrica) - FDA approved 2004
- Duloxetine (Cymbalta) - FDA approved 2004
- Milnacipran (Savella) - FDA approved 2009
- Various muscle relaxants

Procedures:

- Selective nerve root blocks
- Facet joint injections (certain types)
- Intradiscal electrothermal therapy (IDET)
- Percutaneous disc decompression

Note: Full indication details available in official ACOEM guideline at source URL above.

EVIDENCE QUALITY ANALYSIS

ACOEM'S STATED METHODOLOGY:

- Requires randomized controlled trials (RCTs) for "Strongly Recommended" status
- Excludes observational studies and real-world evidence
- Panel composition: See ACOEM official website for current members

CRITICAL OBSERVATIONS:

1. 76.5% "Insufficient Evidence" rate creates presumption of non-coverage
2. Evidence threshold appears higher than FDA approval standards
3. Cost considerations may influence recommendations (see ACOEM methodology)

CONSTITUTIONAL IMPLICATIONS

This guideline contributes to the systematic denial of FDA-approved treatments to California injured workers under the MTUS system.

For full legal analysis, see:

- MTUSCONSTITUTIONALVIOLATIONMASTERREPORT.txt
- MTUS14THAMENDMENTLEGALARGUMENTS.txt

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For the complete, official guideline text, visit:
<https://www.acoem.org/guidelines-resources/library/>

This analysis represents the author's independent research and opinions.

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Classification: Research Analysis / Commentary

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